

26, 2026. At both prior hearings, Petitioner was advised that the Court required the original Certificate of Publication. Despite two continuances the original Certificate of Publication still has not been filed. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the original Certificate of Publication (not a copy) is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: JOHNSTON

CASE NUMBER: 25CV-0209354

Tentative Ruling on Petition for Change of Name: Petitioner Annette Brandi Nielsen aka Annette Brandi Johnston aka Brandi Annette Neilsen Johnston seeks to change her name to Brandi Annette Johnston. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

JONES VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0206995

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Zachary Jones filed this Song-Beverly Consumer Warranty Act case on February 5, 2025, alleging that his 2021 Chevrolet Silverado was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled on August 19, 2025, through a written settlement agreement that expressly preserved Plaintiffs' right to seek fees and costs as the prevailing party under Cal. Civ. Code § 1794(d).

Plaintiffs seek attorney fees of \$28,256.25 (lodestar of 18,837.50 and 0.5 multiplier adding 9,418) and costs totaling \$1,228.77 for a total award of \$29,485.02. GM does not dispute that Plaintiffs are entitled to fees and costs. GM argues that: 1) hourly rates are excessive, 2) unreasonable hours should be stricken, 3) estimated fees should be stricken, and 4) no lodestar multiplier is warranted.

Untimely Opposition: CCP § 1005(b) provides that all opposition papers shall be filed with the court and a copy served on each party at least nine court days before the hearing. Defendant's Opposition was filed with the court only six court days before the hearing. (June 19, 2026, is a holiday.) Plaintiff's Reply does not object to the Court considering the late filing.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM has submitted a Declaration of Evan Martin along with its Opposition. The Declaration provides that Martin “reviewed and annotated a true and correct copy of the fees and costs sought by Plaintiff ...The highlighted portions of said document represent those that GM finds cumulative, excessive, or otherwise objectionable.” The attached Exhibit A highlights numerous time entries without specific explanation or argument as to their alleged unreasonableness. The Declaration of Daghighian provides that 31.4 hours were billed in total. The Court finds the hours billed reasonably spent based on the time records provided and will not reduce attorney hours.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney’s skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney’s customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff’s counsel seeks approval of rates ranging from \$700 for the senior partner, to \$525 for an associate. Counsel provides details on each attorney’s education and experience. Counsel also supports their requested rates by referring to two rate surveys as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Estimated Fees: GM objects to \$4,687.50 of anticipated time for work on this motion, arguing they are improper because the work had not been actually performed at the time of filing. The California Supreme Court has held that the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys’ fee application, and in the court’s fee award.” *Serrano v. Unruh*, 32 Cal.3d 621, 631. Additionally, Plaintiff’s Counsel has represented that 5 hours of the then-anticipated work has now been performed upon submission of the Reply brief. The remaining 2.5 hours for preparation and appearance at the hearing will be awarded unless counsel fails to appear.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a “fee enhancement” or “multiplier.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has “set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.’” *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

The Court has considered the factors listed above and declines to adjust the lodestar with a multiplier. This is a straightforward Lemon Law action which settled at mediation early in the case. No motion practice was undertaken. While the Court acknowledges the attorneys’ skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsel’s standard practice and did not preclude other employment. Finally, the contingent risk and delay in

payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are \$1,228.77. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$12,560.00 and costs of \$1,228.77 are awarded, for a total of \$13,788.77. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

KUNAU VS. CITY OF REDDING, ET AL.

CASE NUMBER: 24CV-0205953

Tentative Ruling on Motion for Leave to File Cross-Complaint: Defendant/Cross-Defendant City of Redding moves for leave to file a Cross-Complaint against Defendant/Cross-Complainant Sysco Sacramento, Inc. Sysco Sacramento, Inc. filed a limited opposition that does not oppose the merits of the motion, but seeks a continuance of the September 10, 2026 trial date should the motion be granted. The City of Redding argues that a continuance is not necessary. Although Plaintiff Cody Kunau was served with the Motion and Opposition, Plaintiff did file a response.

Cross-complaints are to be filed at the same time as the Answer. However, a party may obtain leave of Court to file a cross-complaint at any time. Leave may be granted in the interest of justice. CCP § 428.50. Allowing the City of Redding to file the proposed Cross-Complaint is in the interest of justice. Sysco Sacramento, Inc.'s request for a continuance is reasonable.

The motion is **GRANTED**. A proposed Cross-Complaint was not lodged, therefore, the City of Redding will need to file the Cross-Complaint. The City of Redding is granted ten days leave to file the Cross-Complaint. The September 10, 2026 trial date is vacated. Discovery will remain open and all discovery deadlines will be based on the new trial date. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial and appear to set a new trial date. The City of Redding provided a proposed Order that will be modified to reflect the Court's ruling.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Summary Judgment: Petitioner Allen Donald McCloskey moves for summary judgment on his Verified Petition for Writ of Mandate filed on December 19, 2025. Respondents City of Redding, Redding Fire Department, Jerrod Vanlandingham, and Hailey Holstein oppose the motion.

As a preliminary matter, the Court notes that while Petitioner timely filed his Reply on June 3, 2026, two Supplemental Declarations were filed on June 15, 2026.

A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.

CCP § 437c(b)(4)

The Supplemental Declarations filed June 15, 2026 will not be considered as they were filed in violation of the statute.